

PURDY, et al v MERRICK

24CV47781

PLAINTIFFS' MOTION FOR SERVICE VIA PUBLICATION

This case involves a complaint to partition by sale of real property located at 1439 Calaveritas Road, San Andreas, CA 95249 ("Property") brought by Kristie Purdy ("Purdy") and Steven Savickas ("Savickas") (collectively "Plaintiffs") against Robert Merrick ("Defendant").

Now before the Court is plaintiffs' motion for service by publication.

Pursuant to California Code of Civil Procedure section 415.50, if service by other means authorized by statute is impossible, service may be effected by publication upon approval by the trial court. (*See also Watts v. Crawford* (1995) 10 Cal.4th 743, 748-749, fn. 5.) For service by publication, a plaintiff must show that they have exercised reasonable diligence to attempt to locate and serve the defendants in another manner. Summons may be served by publication if the plaintiff can, by affidavit, show the court that the party cannot be served with reasonable diligence in another manner specified in that article, and " [t]he party to be served has or claims an interest in real property in this state that is subject to the jurisdiction of the court or the relief demanded in the action consists wholly or in part in excluding the party from any interest in the property." (Cal. Code Civ. Proc. §415.50(a)(2).)

Code of Civil Procedure sections 873.320 provides the manner of service by publication in proceedings for partition. It provides:

- (a) The plaintiff shall post, not later than 10 days after the date the order is made, a copy of the summons and complaint on the real property that is the subject of the action.
- (b) The plaintiff shall record, if not already recorded, a notice of the pendency of the action.
- (c) The publication shall describe the property that is the subject of the action. In addition to particularly describing the property, the publication shall describe the property by giving its street address, if any, or other common designation, if any;

but, if a legal description of the property is given, the validity of the publication shall not be affected by the fact that the street address or other common designation recited is erroneous or that the street address or other common designation is omitted.

In determining whether to grant a motion to serve by publication, a number of reasonable, honest attempts to determine the defendant's whereabouts will usually be sufficient. (*Rios v. Singh* (2021) 65 Cal. App. 5th 871, 880.) The determination of whether the diligence exercised is sufficient to justify the order will depend on the facts of the case. (*Donel, Inc. v. Badalian* (1978) 87 Cal. App. 3rd 327, 333.)

Here, Plaintiff provides the declaration of Kristie Purdy which demonstrates the reasonable and good faith efforts made by Plaintiff to serve Defendant and give notice. These efforts include seeking out Defendant at his last known residence, attempting to contact him by phone and email at his last known contacts, community searches of areas where Defendant is known to frequent, attempts to find Defendant through social media, contacting Defendant's relatives and filing a missing person's report. (Declaration of Kristie Purdy ("Purdy Decl") ¶¶ 2(a)-(h).)

The Court finds that Plaintiff's efforts have been extensive and exhaustive. Plaintiff met the requirements of Code of Civil Procedure section 415.50 demonstrating that it is not possible to serve Defendants through other means authorized in the article, and that Plaintiff has exhausted reasonable avenues of inquiry and investigation with reasonable diligence under the circumstances, warranting grant of the motion in compliance with statutory mandates.

Based on the foregoing, plaintiffs/ motion for service by publication is **GRANTED**. Plaintiffs are therefore ordered to, within ten days of this order, post a copy of the summons and complaint on the real property that is the subject of the action. Plaintiffs are further ordered to record a lis pendens. Finally, plaintiffs are ordered to publish a CCP 873.320 compliant notice in the Calaveras Enterprise for four consecutive weeks. Upon filing a declaration with the Court attesting to perfection of the CCP 873.320 requirements (including attachments of the lis pendens and proof of publication) service shall be deemed effected.

The Clerk shall provide notice of this Ruling to the parties forthwith. Plaintiffs to submit a formal Order in conformity with this Ruling.

ARIZA v LAKESIDE VENTURES, LLC

22CV46059

**PETITIONER'S MOTION TO VACATE PRELIMINARY INJUNCTION; PLAINTIFF'S
MOTION TO COMPEL PRODUCTION OF DOCUMENTS**

Motion to Vacate Preliminary Injunction:

This matter involves a dispute over the sale of a mobile home estate located at 1475 Railroad Flat Road, Mokelumne Hill, CA ("Mobile Home Estate.") Before the Court is the motion to compel production of documents filed by Plaintiff Helen Ariza ("Plaintiff") against Defendants Lakeside Ventures, LLC, Bonnie K. Tuckerman-Aho (Hurley), Scott Nordyke and Arthur Trillo ("Defendants").

On January 19, 2024, the Court granted the motion for preliminary injunction filed by Defendants Nordyke and Trillo. Pursuant to that ruling, the Plaintiff was ordered to refrain from representing that she was an owner in the Mobile Home Park, had authority to collect rents, to evict tenants, to make alterations to the Park, to incur debts related to the Park or to solicit tenants to file complaints against the Park.

Now before the Court is Plaintiff's motion to vacate the Preliminary Injunction. Plaintiff does not cite any legal theory, case law, or statute upon which the motion is brought, although she does reference Code of Civil Procedure section 473 in the pleading's caption.

Code of Civil Procedure 473(a) allows for amendments to pleadings to correct mistakes, which is inapplicable herein. Subsection (b) allows for a court to relieve a party from a judgment or ruling against it based on "mistake, inadvertence, surprise, or excusable neglect." Plaintiff makes no such allegations in her motion to vacate. Rather, the motion is simply a set of allegations that Nordyke and Trillo are not operating the Park according to appropriate law or standards. She provides no citation that would authorize the Court to vacate the injunction based on her allegations.

Accordingly, Plaintiff's motion to vacate the preliminary injunction currently in place is **DENIED**.